

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

December 28, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Kristy Anderson, Deputy City Clerk; Tammy Fossen, City Treasurer's Office, and Dan White, City Attorney. The pledge of allegiance was recited.

Nominations and election of City Council President for 2010. Mayor Kaysen announced, pursuant to City Code, Title 2, the Mayor conducts the elections for City Council President and Vice-President but may not vote, therefore, he would not be participating in voting for the elections of Council President and Vice-President. Mr. Collins moved to nominate and elect Dr. Rinne as City Council President for 2010, seconded by Ms. Ash. Mr. Spiker moved to nominate and elect Ms. Broyles as City Council President for 2010, seconded by Mr. Pierson. There being no further nominations, Mr. Collins moved that nominations cease, seconded by Mr. Brown. Motion to cease nominations carried. Voting "yes" – all members of City Council. Comments followed regarding an informal straw poll conducted by council members each year prior to the election of Council President and Vice-President, and the role of Council President. Upon request, Dr. Rinne and Ms. Broyles provided comments on their experience serving on City Council and how each felt they could best represent the Council. Motion to elect Dr. Rinne did not carry. Voting "yes" - Ms. Ash, Mr. Collins, Dr. Rinne and Mr. Valdez. Voting "no" - Mr. Brown, Ms. Broyles, Mr. Pierson and Mr. Spiker with Ms. Case "passing". Motion to elect Ms. Broyles did not carry. Voting "yes" - Mr. Brown, Ms. Broyles, Mr. Pierson and Mr. Spiker. Voting "no" - Ms. Ash, Mr. Collins, Dr. Rinne and Mr. Valdez with Ms. Case "passing". Mr. Pierson moved to reopen nominations, seconded by Mr. Collins. Ms. Case raised a point of order regarding her option to pass during voting, advising she did not abstain but wished to vote later. Mr. Pierson withdrew his motion to reopen nominations, with concurrence by Mr. Collins as second to the motion. Upon request regarding a ruling on breaking a tie relative to passage of a motion to elect officers, City Attorney Dan White requested a brief recess in order to research Roberts Rule of Order further before making a ruling. Following a 15 minute recess, Mayor Kaysen reconvened the meeting at 6:40 p.m. Mr. White advised after reviewing Robert's Rules of Order the option to pass is only allowed when there is a roll call vote; the "pass" procedure doesn't apply in this situation as it is a voice vote, therefore a "pass" could be determined as an abstention or a negative vote making both nominations a 4-5 vote with neither candidate prevailing. He further clarified pursuant to City Code, the Mayor conducts the elections, but does not cast a vote. Upon inquiry on whether it was in order to make a new motion, Mr. White clarified per Robert's Rules of Order, council continues voting until a candidate is elected so nominations would need to be reopened. Mayor Kaysen called for nominations. Mr. Pierson moved to nominate Ms. Broyles as City Council President for 2010, seconded by Mr. Brown. Mr. Collins moved to nominate Dr. Rinne as City Council President for 2010, seconded by Ms. Ash. Mr. Collins moved to cease nominations, seconded by Mr. Brown. Motion to cease nominations carried, with all Council members voting "yes". Mr. Spiker raised a point of order on whether a failed motion could be re-introduced at the same meeting with Mr. White advising per Robert's Rules of Order nominations could continue, even for the same candidates, until someone was elected. He also clarified "pass" could not be used in this type of vote. Motion to elect Dr. Rinne did not carry by a majority vote. Voting "yes" - Ms. Ash, Mr. Collins, Dr. Rinne and Mr. Valdez. Voting

“no” - Mr. Brown, Ms. Broyles, Ms. Case, Mr. Pierson and Mr. Spiker. Motion to elect Ms. Broyles carried by a majority vote. Voting “yes” - Mr. Brown, Ms. Broyles, Ms. Case, Mr. Pierson and Mr. Spiker. Voting “no” - Ms. Ash, Mr. Collins, Dr. Rinne and Mr. Valdez.

Nominations and election of City Council Vice President for 2010. Mr. Collins moved to nominate and elect Mr. Pierson, seconded by Mr. Spiker. There being no further nominations, Mr. Brown moved that nominations cease, seconded by Mr. Collins. Motion to cease nominations carried. Voting “yes” – all members of City Council. Upon inquiry regarding whether a straw poll had been held for Vice President, it was advised it had not. Upon further inquiry on how Mr. Pierson had come to be nominated, it was advised he was nominated for his past experience serving on City Council. Motion to nominate and elect Mr. Pierson carried. Voting “yes” – all members of City Council.

Mayor Kaysen announced that individuals in attendance in the audience that may be present for the two agenda items introducing an ordinance regarding terms and conditions of employment for non-uniformed employees and sworn officers would only be referred to Finance Committee at this meeting with no discussion at this time on either ordinance. He advised the Finance Committee would meet in Room 122 on January 4, 2010 beginning at 11:00 a.m. However, he stated if those employees present wished to speak under other business at the meeting they were welcome to stay and provide comments at that time.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #23(e) was removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Mr. Pierson, agenda item #23(b) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON DECEMBER 14, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON DECEMBER 21, 2009. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Collins. Mr. Valdez declared a conflict of interest due to a voucher payable to radio station KYOY (\$250.00), for advertising, and vacated Council Chambers. Motion carried. Voting “yes” - all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing for a transfer of ownership for a restaurant liquor license application filed with the City Clerk’s Office for Wei Sheng Qiu d/b/a Golden House Chinese Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY (License currently held by Yu Zheng d/b/a Golden House Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY). There being no comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the public hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the parcels commonly known as Southwest Properties, situated in a portion of Sections 12 and 13, T. 13N., R. 67W., of the 6th P.M. Laramie County, WY. (Generally located east of Southwest Drive, South of Interstate 80, West of BNSF Railroad, and North of Woodenshoe Road, including Cheyenne Animal Shelter and associated rights-of-way). Don Threewit, Planning Services Dept., reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Deb Roden, attorney with Woodhouse Roden Law Office, representing county residents residing in the area proposed for annexation, advised they had the same objections to this annexation action as they did regarding the Swan Ranch annexation. Ms. Roden raised concerns with traffic congestion and egress/ingress to the development; geographical and physical isolation of the area from the city and contiguity issues. Mike Basom, attorney with Dray, Thompson and Dyekman, representing the developer, advised these issues have been raised before with other annexations with the same platting, planning and design issues. He advised this property is referred to as a natural growth property in the PlanCheyenne document and stated issues could be worked out within the platting phase of the development. Leo Garcia, spoke in opposition to annexation based on traffic concerns and commented he does not feel this is for the health, safety and welfare of the individuals that live in this area. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM MR-2 MEDIUM DENSITY RESIDENTIAL-DEVELOPING AND PUD PLANNED UNIT DEVELOPMENT DISTRICTS TO HR-2 HIGH DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR A REPLAT OF LOTS 1 AND 2, BLOCK ONE, FARSON ADDITION AND ALL OF BLOCK ONE, DRY CREEK TWIN HOMES, ALSO TO BE KNOWN AS WOODHAVEN SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO WILLS ROAD, SOUTH OF THE DRY CREEK CHANNEL AND PARKVIEW DRIVE)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING ORDINANCE NO. 3860 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING ORDINANCE NO. 3861 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE FEBRUARY 2010 APPLICATION FOR THE COUNTYWIDE CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD.” Motion (per Consent Agenda) carried. (#5172)

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR CONGESTION MITIGATION/AIR QUALITY (CMAQ) FUNDS FOR THE CONSTRUCTION OF

A MODERN ROUNDABOUT AT THE INTERSECTION OF PERSHING BLVD./CONVERSE AVE./19TH ST. (2007-2010 1% SALES TAX).” Motion (per Consent Agenda) carried. (#5173)

[CA] “A RESOLUTION REQUESTING RELINQUISHMENT OF A PORTION OF A STATE HIGHWAY RIGHT-OF-WAY LOCATED WITHIN THE CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED IN THE VICINITY OF NATIONWAY BETWEEN DUNN AND LOGAN AVENUES)” Motion (per Consent Agenda) carried. (#5174)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CATHEDRAL COMMONS, 2ND FILING, A REPLAT OF BLOCK ONE, CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND GARDENIA DRIVE).” Reporting for Public Services Committee, Mr. Brown moved to adopt with staff recommendations #2 and 3, seconded by Mr. Pierson. Motion carried. Voting “yes” - all members of the governing body. (#5175)

“A RESOLUTION DESIGNATING LOCAL BANKS AS DEPOSITORY FOR MUNICIPAL FUNDS.” Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Ms. Broyles. Mr. Spiker and Mr. Collins each declared a conflict of interest due to bank board affiliations and vacated Council Chambers. Brief comments followed. Motion carried. Voting “yes” - all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker and Mr. Collins returned to Council Chambers. (#5176)

“A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A STATE HISTORIC PRESERVATION OFFICE CERTIFIED LOCAL GOVERNMENT GRANT AWARD #56-10-000000.03 FOR A CLASS II CULTURAL RESOURCE SURVEY OF THE BELVOIR RANCH PROPERTY.” Mr. Valdez moved to adopt, seconded by Mr. Collins. Upon inquiry, Don Threewitt, Planning Services Dept., advised the total survey cost is \$25,626.00, which includes the following funding: City hard cash match of \$5,000.00 through the Urban Planning Small Grant Match fund, the award of a grant from the State Historic Preservation Office (SHPO) in the amount of \$15,000.000, an in-kind local match of \$2,160.00 and staff time (150 hours) and materials match of \$3,466.00 included in the Planning Department budget. Discussion followed on the survey providing the opportunity to develop the ranch in the future, deadline time frame for grant application and council approval. Upon inquiry, Mr. Threewitt advised an extension for the application to be submitted had been applied for and received to Jan. 31, 2010. He further clarified \$5,000 had been previously budgeted and advised this is a “sole source” for services and will not go out to bid. Dr. Rinne moved to amend the last “Be it further resolved” clause to add at the end of the sentence “and acceptance by City Council,” seconded by Ms. Ash. Upon inquiry regarding whether the Resolution was time sensitive, Mr. Threewitt reiterated the deadline to submit acceptance of the grant was Jan. 31, 2010. Discussion followed on time frame for submittal of grant acceptance and allowing enough time for staff to negotiate survey provisions to meet the deadline, occurrence of SHPO grants being awarded, and concerns with taking on more financial responsibilities during a budget crisis. Upon inquiry, Mr. Threewitt advised SHPO grants have been awarded annually, however the City has not previously turned down a grant, stating he was unsure whether non-acceptance could effect future awards. He further reviewed soft match provisions involving volunteer time and staff time, and hard cash aspects involving the project. Motion to amend failed. Voting “yes” - Ms. Ash, Ms. Broyles, Dr. Rinne and Mr. Valdez. Voting “no” - Mr. Brown, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker and Mayor Kaysen. Discussion continued on future opportunities to apply for grants for the ranch. Upon inquiry,

Mr. Threewitt, provided information on state grant funding available and the City's share of awarded funding. Main motion failed. Voting "yes" - Ms. Case, Mr. Collins, Mr. Valdez and Mayor Kaysen. Voting "no" - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne and Mr. Spiker.

[CA] "A RESOLUTION DESIGNATING THE SUNDAYS DURING 2010 THAT ANNUAL LIQUOR LICENSEES MAY EXTEND DISPENSING ROOM HOURS OF OPERATION FOR SALES UNTIL 2:00 A.M. THE FOLLOWING DAY" -- referred to Finance Committee (sponsor - Mr. Collins)

[CA] "A RESOLUTION AUTHORIZATION FOR THE MAYOR AND CITY CLERK TO EXECUTE A STATE HISTORIC PRESERVATION OFFICE (SHPO) CERTIFIED LOCAL GOVERNMENT GRANT AWARD FOR HISTORIC PRESERVATION BOARD MEMBER ATTENDANCE AT THE 2010 SAVING PLACES CONFERENCE" -- referred to Finance Committee (sponsor - Mr. Valdez).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGE:

Preliminary Plat for Block 140, Original City, 2nd Filing, a replat of Lots 1-8, Block 140, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue). Mr. Brown moved to acknowledge receipt with staff recommendations #1, 2, 3 and 5, seconded by Mr. Collins. Upon inquiry, Brett Walker, Development Department, explained the Development office had not approved this area as a dirt parking lot. Brad Emmons, AVI and agent for applicant, explained paving of the lot is planned and advised the State is currently using the dirt lot to alleviate on-street parking. He clarified the paving will be done after site plan, zone change and vacation of alley are completed. Ian Cattalier, State of Wyoming, Construction Management, explained the contract was to be done Dec. 30, 2009, but budget constraints had precluded some of the work. Upon inquiry about several parking facilities already in existence for state employee parking, Mr. Cattalier explained plans are for a new office building at this location, but in an effort to maintain dust control, paving of the parking lot is planned if the building will not be constructed in the near future. Motion carried. Voting "yes" - all members of the governing body.

Preliminary Zone Change from MR-1 Medium Density Residential-Established District to PUD Planned Unit Development District for Lot 1, Original City Block 140, 2nd Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue). Mr. Brown moved to acknowledge receipt with staff recommendations #2, 3, 4 and 6 and Planning Commission recommendation #7, seconded by Mr. Pierson. Upon inquiry, Suzanne Norton, State of Wyoming, Construction Management, explained that due to a study that was conducted, the parking that is planned is adequate for employees and visitors. Motion carried. Voting "yes" - all members of the governing body.

[CA] Preliminary Plat for Woodhaven Subdivision, a replat of Lots 1 and 2, Block One, Farson Addition and all of Block One, Dry Creek Twin Homes, Cheyenne, Wyoming (located east of and adjacent to Wills Road, south of the Dry Creek Channel and Parkview Drive) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Agreement of Acceptance between the City of Cheyenne and the Wyoming Department of Transportation for 0.16 acres of highway right-of-way adjacent to Nationway between Dunn Avenue and Logan Avenue for the purpose of building Greenway Pathways (Greenway construction funded by 2007 Norris TEAL Grant). Motion (per Consent Agenda) carried. (#5492)

Lease Agreement between Francis E. Warren Post No. 1881, Veterans of Foreign Wars and the City of Cheyenne, Parks and Recreation Department, for the city's use of Pride Park Softball Complex. Phil Harris, Quartermaster Secretary/Treasurer of Post 1881, explained the lease was initially for the use of 2 girls ball fields and explained no federal dollars were used for construction of the fields. He advised the lease was dissolved 2 years ago, and they offered the fields for City use for girls softball and other youth activities. Mr. Harris advised Post would like to continue to see the fields used by the youth of the community with a long term lease agreement for use of the fields with maintenance provided by the lessee. He further advised if the City is not interested in this arrangement, Extreme Softball Club had indicated they would be interested in entering into negotiations for use of the field. Lou Simpson objected to the lease agreement because of the City's current financial situation and costs associated with maintaining the fields. Upon inquiry, Rick Parish, Parks and Recreation Director, reported the projected cost to maintain the fields is approximately \$20,000 annually and explained there is a shortage of fields in the community. He advised current User Agreements involving athletic fields will expire as of December 31, 2009 and will not be renewed, stating the City is looking at "pay for play" agreements. John Palmer questioned maintenance costs involved. Mr. Valdez moved to approve in the amount of \$1.00, seconded by Ms. Ash. Discussion followed on leasing fields to the girl's Extreme Softball Club, overall increase in maintenance costs of city parks, investing in future baseball infrastructure, budget cuts and effect on recreational activities and services, providing a facility for the girls' softball leagues, and costs associated with maintaining and providing upgrades to the fields. Upon inquiry, Mr. Parish advised that the fields would primarily be used for practice as the girls softball games are currently played at Converse field. Upon further inquiry, Mr. Harris provided information on potential negotiations with the softball club and use of the fields. Major Dorr spoke in support of teams from out of town using the fields, bringing revenue dollars into the community. Motion carried. Voting "yes" - Ms. Ash, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting "no" - Mr. Brown, Ms. Broyles, Mr. Pierson and Mr. Spiker. (#5493)

Following a five minute recess, Mayor Kaysen reconvened the meeting at 8:47 p.m.

[CA] Agreement with Laramie County to provide radio communications equipment to the City of Cheyenne, Public Works Department, purchased with funds from U.S. Department of Homeland Security and administered by Wyoming Department of Homeland Security (Partial 2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (City's match \$4,335.27). (#5494)

[CA] Agreement between the City of Cheyenne and Wyoming Department of Transportation for a Transportation Enhancement Activities - Local (TEAL) Grant for continuation of the Greenway System (Walterscheid Pedestrian Underpass Project) (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried. (#5495)

Professional Services Agreement between the City of Cheyenne and Ayres Associates for design and construction engineering services for the E. Pershing Blvd. Reconstruction Project (Phase IV) (2003-2006 & 2007 - 2010 1% Sales Tax, BOPU). Frank Cole spoke in opposition to the project.

Mr. Valdez moved to approve, seconded by Ms. Broyles. Concerns were expressed with project costs and availability of funds for completing the project. Upon inquiry, Doug Vetter, City Engineer, explained the budget for this project was formulated approximately 5 years ago involving 5th penny sales tax funds. He reviewed potential project costs, what sources would be provided under the agreement, construction bid alternates based on funding and possible grant funding availability. Nathan Beauheim, Assistant City Engineer, reviewed areas that could help reduce project costs, and clarified funds currently budgeted and funds needed to complete the project, providing a spreadsheet on proposed costs and funding. Gene MacDonald, Ayres Associates, addressed questions relating to roundabout issues and what would be most cost effective for the project. Upon further inquiry, Mr. MacDonald advised that a portion of the money is allocated for right-of-way acquisition. Upon inquiry, Mr. Beauheim clarified money for the project is currently uncommitted. Motion carried. Voting "yes" - all members of the governing body with the exception of Ms. Case voting "no" (\$999,856.00). (#5496)

[CA] Agreement between the City of Cheyenne and Stride Learning Center for the lease of a transit program bus to be used by Stride's clients. Motion (per Consent Agenda) carried (1 year lease/\$1.00 revenue to city). (#5497)

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 1 to Contract No. 5467 between the City of Cheyenne and Cheyenne Light, Fuel & Power Company for a reduction in cost of extension of electric service to the Construction & Demolition Recycle Building (State Loan & Investment Board. Motion (per Consent Agenda) carried (in the reduced amount of \$7,850.00). (#5467)

[CA] Amendment No. 2 to Contract No. 4769 between the City of Cheyenne and Attention Homes, Inc. for rental renewal of real property for an additional 24 month. Motion (per Consent Agenda) carried. (#4769)

[CA] Contract Modification No. 1 to Contract No. 5364 between the City of Cheyenne and S&S Builders, LLC for additional quantities needed to complete the signal installation at Dell Range and Marble Avenue (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5477 between the City of Cheyenne and Recco, Inc. d/b/a Five-R-Co. to lower the power lines to the Transfer Station gas pumps -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5045 between the City of Cheyenne and J-R Engineering, LLC for design services on the 2009 Bus Stop Upgrades Project (Federal Transit Authority & American Reinvestment and Recovery Act) -- referred to Finance Committee.

[CA] Contract Modification No. 4 to Contract No. 4968 between the City of Cheyenne and Wyoming Department of Transportation for the reconstruction of Pershing Blvd from I-25 to Pioneer Avenue (2003-2006 1% Sales Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-12-10 for a contract between the City of Cheyenne and Aztec Construction Co., Inc., of Cheyenne, for the Transfer Station Fire Main Loop Project (State Loan &

Investment Board). Mr. Valdez moved to accept the bid in an amount not to exceed \$113,724.00, seconded by Ms. Broyles. Upon inquiry, Jim Elias, Public Works Director, explained that use of the miscellaneous force account would allow immediate action, if necessary, for any unknown problems that may occur during the project. Concerns were expressed regarding completion of other projects on the SLIB list. Upon inquiry, Mr. Elias explained that projects for solid waste use would go unfinished if this is paid for out of the solid waste fund. He further advised this project is part of the single stream recycling project that was approved under SLIB funding, and provided information on project costs and funding. Motion carried. Voting “yes” – all members of the governing body. (#5498)

[CA] Consideration of Bid #R-3-10 for one new 2011 cab & chassis truck with dump body, spreader, snow plow and tarpaulin from Peterbilt of Wyoming for the Street and Alley Department (2003-2006 & 2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (approved in the amount of \$171,952.00).

[CA] Consideration of Bid #R-5-10 for two 2010 4x4 Utility Vehicles from Greiner Ford, Casper, WY for the Public Works Dept and Construction Engineering Dept. (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (approved in the amount of \$39,304.00).

[CA] Consideration of Bid #R-7-10 for furnishing and installing one new single ram baler and one new roller chain conveyor from JDM Equipment, LLC of Arvada, CO for the Transfer Station -- referred to Finance Committee.

APPOINTMENTS:

Appointment of Philip Griggs to the Public Transit Advisory Board and Kurt Zunker to the Fire Civil Service Commission. Mr. Collins moved to approve, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held January 11, 2010 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for a parcel of land being situated in the SW ¼ NW ¼ of Section 21 T. 14N., R. 66W., of the 6th P. M., Laramie County, WY (located south of Plain View Road, west of Point Bluff, and north of Apache Street).

Announcement was made of the appointment of Brian N. Kozak as Chief of Police for the City of Cheyenne, to be confirmed January 11, 2010.

OTHER CITY BUSINESS:

Claus Johnson, Cheyenne Public Employees Association (CPEA) President, commended Mr. Harris for coming forth with the lease agreement of the Pride Park Softball Complex, but advised he does not support the agreement that went through tonight with Post 1881 due to the city’s financial concerns. He advised he feels employees should come first and this could have saved the city \$20,000. He noted he was speaking on behalf of co-workers, stated he doesn’t feel employees created the financial situation the city is in, but they are part of it, and commented that employees should have been made aware of the situation sooner and given an opportunity to provide input. Upon inquiry for clarification on cost saving ideas for the city, Mr. Johnson provided some cost saving measures the

Parks and Recreation Department has implemented, and suggested a change to the city vehicle take-home policy. He advised CPEA is in opposition to employees losing longevity pay.

Also speaking in regard to the City's financial situation, Steve Pennock, Sanitation Board representative, discussed cost saving measures that have already been implemented in the Sanitation Department. He advised they are willing to do their part, but expressed concerns with loss of longevity pay. Hawk Leal, Sanitation Department employee, also expressed concerns with losing longevity pay, stating furlough days are understandable, and provided suggestions for cost saving measures for Sanitation Department operations. He also expressed concerns over citizens lack of participation in Sanitation Department programs. John Palmer, Sanitation Department employee, expressed concerns on reducing employees pay and discussed wages for Sanitation Department employees. He requested the City look at cutting projects before cutting pay.

Upon inquiry regarding clarification of certain part-time employees in the Public Works Dept. and Treasurer's Office, Jim Elias, Public Works Director, explained that the Department is looking at combining and/or eliminating part-time positions. Mayor Kaysen explained the part-time position in the Treasurer's office had been a full-time position and changing to part-time status will result in savings to the city.

Mayor Kaysen addressed the city employee vehicle policy and clarified department heads had been asked to evaluate and assess all employees who have vehicles assigned with regard to "on call" responsibilities, discussed proposed longevity and deferred compensation reductions, and encouraged employees to bring cost saving ideas and concerns to him.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:05 p.m.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 11, 2010